Supplemental Forms for Short-Term Rental Permit

WHAT IS A SHORT-TERM RENTAL? A short-term rental is a dwelling unit which is shared, in whole or in part, for transient occupancy for periods of up to 30 consecutive days as a way of generating rental income. Ordinance No. 7317 allows hosted and un-hosted short-term rentals, subject to limitations. A Short-Term Rental permit and remittance of taxes and assessments on a quarterly basis are required. Vacation rentals and properties where the property owner does not reside for a minimum of nine (9) months out of the year are not permitted to be used for the purpose of short-term renting.

WHAT ARE THE OPERATING STANDARDS FOR SHORT-TERM RENTALS?
A summary of the operating standards for short-term rentals is included in this application packet. For the full regulations, please refer to Ordinance No. 7317 or Section 17.50.296 of the Pasadena Municipal Code.

HOW DO I OBTAIN A SHORT-TERM RENTAL PERMIT?
You can apply online for a short-term rental permit at www.cityofpasadena.net/shorttermrentals. The permit must be renewed annually.

The following is required for online submission of a short-term rental permit application:

Requirements for application submittal:

☒ **Property Inspection Certification/Self-Certification.**

☒ **Copy of 'Neighborhood Notice'.**

☒ **Notarized Affidavit**

☒ **Proof of primary residency at property.** Must submit at least two of the following documents which specifically identify both the applicant by name and the subject property address:

1. Current vehicle registration.
2. Current utility bill/cable/cell phone bill. Must be dated within last 3 months.
3. Copy of current driver's license or government-issued ID (must include address).

☒ **A minimum of three (3) photographs of unit/room proposed for short-term rental.** Photos must show the interior, front entrance and exterior of the short-term rental.

CONTACT:

For questions on this application or regulations:	Planner of the Day ZoningQuestions@CityofPasadena.net
For questions on TOT/TBID tax remittance:	Municipal Services (626) 744-4538 or website
To report violations:	Code Compliance (626) 744-8633

Operating Standards for Short-Term Rentals

☐ **TYPE 1: Hosted Short-Term Rental Permit**

- Applicant must reside at the property for a minimum of 9 months per calendar year.
- Applicant must remain at the property during all guest stays.
- No limit on the number of stays per calendar year.
- In single-family properties, permit holder may short-term rent the primary dwelling plus one of the following:
  (1) An accessory dwelling unit prior to January 1st, 2017 OR
  (2) An accessory structure permitted prior to January 1st, 2017.
- In multi-family properties, including duplexes, permit holder may short-term rent their primary dwelling plus one additional unit only.

☐ **TYPE 2: Unhosted Short-Term Rental Permit**

- Applicant must reside at the property for at least 9 months per calendar year.
- Applicant need not be present during guest stays but must retain a local contact person or property management company that is available 24 hours per day.
- Limit of 90 days of guest stays per calendar year.
- In single-family properties, permit holder may short-term rent the primary dwelling plus one of the following:
  (1) An accessory dwelling unit permitted prior to January 1st, 2017 OR
  (2) An accessory structure permitted prior to January 1st, 2017.
- In multi-family properties, including duplexes, permit holder may short-term rent their primary dwelling plus one additional unit only.

☒ **STANDARDS APPLICABLE TO ALL SHORT-TERM RENTALS (P.M.C. Section 17.50.296):**

- A person/entity may have only one home-sharing property in the City (i.e. their primary residence).
- Short-term rentals cannot be used for any commercial parties or events.
- Accessory dwelling units permitted on or after January 1, 2017 are not eligible to conduct short-term rentals.
- *PERMITS:* A Short-Term Rental permit must be obtained and renewed annually.
- *TAXES:* Applicant required to remit Transient Occupancy Tax (TOT) and Transit Business Improvement District (TBID) assessment to the City on a quarterly basis. Permit holder is responsible for TOT and TBID tracking, documentation and fee submission.
- *INSPECTION:* A third-party inspection or self-certification is required prior to issuance of the permit to confirm that the space meets life/safety requirements.
- *OCCUPANCY:* A maximum of 2 guests per bedroom plus 2 additional guests are allowed.
- *PARKING:* Guests shall utilize off-street parking only.
- *SIGNAGE:* No signs can be posted advertising the short-term rental use or vacancies.
- *NOISE/LITTER:* Applicant must adhere to the City's Noise Ordinance and Litter Ordinance.
- *HOA:* Applicant is responsible for adhering to any applicable HOA and CC&R regulations and restrictions at all times. A city permit does not supercede HOA or CC&R regulations.
- *LISTING:* The Short-Term Rental permit number must be included in any listing or advertising of the property.
- *NOTIFICATION:* A completed Neighborhood Notice shall be mailed or delivered by the applicant to all properties abutting, directly and diagonally across the street, from the residence and to the HOA, if applicable. Notification in multi-family complexes is required to the HOA and all units which share a wall or floor with the short-term rental unit.
- *ENFORCEMENT:* Three (3) violations against the same property being used for short-term rental will result in the revocation of the home-sharing permit. Listing without a permit is considered a violation. Failure to include the Short-Term Rental permit number in a listing is also considered a violation.

Affidavit for Short-Term Rentals

INSTRUCTIONS: This affidavit must be completed in its entirety and the applicant's signature must be notarized. Failure to obtain notary acknowledgment will render your Short-Term Rental permit application incomplete.

I, _____, hereby certify that the information in this affidavit and in my online Short-Term Rental Permit application is complete and correct. I certify that the property located at: _____ is my primary address where I reside at for nine or more months per year. I have read and understand the regulations for Short-Term Rentals in Section 17.50.296 of the Pasadena Municipal Code and I agree to comply with all requirements at all times.

I certify that the *Neighborhood Notice* was provided (via mail or hand-delivery) to the following addresses:

_____ _____ _____

_____ _____ _____

_____ _____ _____

_____ _____ _____

_____ _____ _____

_____ _____ _____

Name of neighborhood association(s) notified:

_____

If my property is located within a Home Owners Association (HOA), it is my responsibility to adhere to any HOA restrictions regarding short-term rentals. If I am not the owner of the property, I certify that I have informed my landlord and have obtained their approval to conduct short-term rentals. I will obtain and annually renew a Short-Term Rental Permit from the City of Pasadena and I agree to remit transient occupancy tax and reports on a quarterly basis. I understand that my Short-Term Rental permit can be revoked if I violate the Short-Term Rental regulations and/or if fraudulent information was provided in the Short-Term Rental permit application.

Print Name: _____ Signature: _____ Date: _____

Property Inspection Self-Certification for Short-Term Rentals
(Accessory Structures May Require City Inspection)

1. Is the unit being rented an 'accessory structure' (i.e., guest house, pool house, etc.)?

☐ **YES**. A City inspection may be required for accessory structures**.** You will be contacted by City staff to verify if a City inspection will be done. Completion of this self-certification is required.

☐ **NO.** Proceed with self-certification.

2. Address: _____

3. Photos: Provide a minimum of 3 photos which show the exterior, interior and front entrance of the short-term rental unit.

☐ Exterior ☐ Interior ☐ Front Entrance ☐ Other:_____

4. The short-term rental unit/rooms must meet all of the following standards:

_____ All sleeping rooms used for short-term rental are provided with one operable window or door in addition to entry.

_____ Every sleeping room and hallway has a functional smoke alarm.

_____ Every floor has a functional carbon monoxide alarm.

_____ All electrical outlets in kitchen and bathrooms are Ground Fault Circuit Interrupter (GFCI) protected.

_____ Water heater is properly strapped, adequately vented, and temperature and pressure relief valves are drained to outside.

_____ Other heating equipment is in safe operating condition and placed in an approved location.

_____ Driveway, if present, is open and accessible to vehicles.

I _____conducted a visual inspection of the interior and exterior of the structure(s) and/or rooms proposed to be used for short-term rental at the property located at _____. Based on my inspection, I find that it is safe to occupy for residential purposes in its present condition. I observed nothing in connection with my inspection of this property that indicates or suggests that the property in its present condition poses a hazard to life, health, or public safety. My signature here is intended to certify to the City of Pasadena that I believe this property is safe to occupy. I understand and intend that the City of Pasadena may rely on this certification as to the safety of this property for residential use as short term lodging by the public in deciding whether to approve the property owner's application for a license to operate this property in its present condition for a Short Term Rental use.

Certification Completed By:

☐ **Applicant.** Print, sign and date below.

☐ **Third Party Inspector**. Complete all sections below.

Print Name: _____ Signature: _____ Date: _____

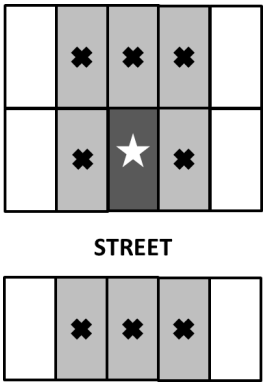
Company: _____ License/Certification #: _____

SHORT-TERM RENTAL PERMIT
Neighborhood Notice

Hello Neighbors, Neighborhood Representatives, and Property Owners,

The City of Pasadena's Municipal Code Section 17.50.296 allows me to rent my residential property at _____ to overnight guests on a short-term basis (less than 30 days). You are receiving this notice because, as part of the permit application with the City, I am required to mail or deliver this notice to my neighborhood association(s) and properties abutting, directly and diagonally across the street from my residence. See figures below for notice area. In multi-family complexes and properties with four or more units, notification is required to the directly abutting units (any unit which directly shares a wall, ceiling or floor with my unit) and to the HOA.

Figure 1



LEGEND:
☆ Subject Site
✖ Properties notified

Figure 2

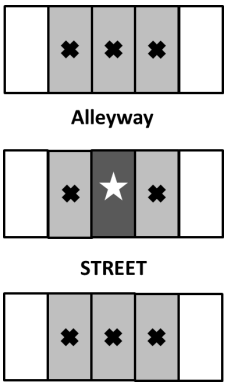
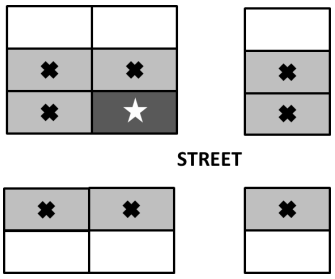


Figure 3



I have applied for a: ☐ **TYPE 1 PERMIT** (see pg. 2) ☐ **TYPE 2 PERMIT** (see pg. 2)

Below is a brief description of my short-term rental, including number of bedrooms to be rented, where my guests will be parking, contact information, etc. The second page of this document lists Pasadena's Short-Term Rental regulations.

_____

_____

_____

_____

Contact Information

Applicant/Resident: _____ Phone number (required):_____

Owner, if not the resident: _____ Phone number (required):_____

This notice is provided as a courtesy so neighborhood representatives and adjacent neighbors are aware of this activity happening in their neighborhood.

OPERATING STANDARDS FOR SHORT-TERM RENTALS

PROPERTY ADDRESS: _____

☐ **TYPE 1: Hosted Short-Term Rental Permit**

- Applicant must reside at the property for 9 months per calendar year.
- Applicant must remain at the property during all guest stays.
- No limit on the number of short-term stays per calendar year.

---- AND/OR----

☐ **TYPE 2: Unhosted Short-Term Rental Permit**

- Applicant must reside at the property for at least 9 months per calendar year.
- Applicant need not be present during guest stays but must retain a local contact person or property management company that is available 24 hours per day.
- Limit of 90 days of short-term stays per calendar year.

☒ **OPERATING STANDARDS APPLICABLE TO ALL SHORT-TERM RENTALS:**

- The short-term rental permit is valid for one year. Permit renewals do not require Neighborhood Notification unless there is a change in property ownership, permit type, etc.
- A person/entity may have a TYPE 1 and/or a TYPE 2 short-term rental permit for one property only (i.e. at their primary residence).
- The total number of guests is limited to 2 guests per bedroom plus 2 additional guests.
- There is no limit to the number of bedrooms which can be rented to overnight guests so long as the rooms are located within the short-term rental unit or detached accessory structure. Some accessory dwelling units (ADUs) may also be used as short-term rentals if constructed prior to January 1, 2017.
- There can be no non-resident employees on site associated with the short-term rental, although services for normal maintenance, repair or care of the residence or site, such as yard maintenance or house cleaning, are allowed.
- Guests cannot hold commercial meetings such as luncheons, parties, weddings, charitable fundraising events, etc.
- Signage advertising the short-term rental or vacancies is not permitted.
- Parking for all guests must be provided on site.
- The short-term rental permit number must be included in all advertising.
- Applicant is responsible for adhereing to any applicable HOA and CC&R regulations and restrictions at all times. Applicant shall not operate a short-term rental if the HOA or CC&R prohibits the use.
- Three (3) violations will result in the revocation of the short-term rental permit. Listing without a permit will be considered a violation.

The full regulations for short-term rentals can be found in Ordinance No.7317 and in Section 17.50.296 of the Pasadena Municipal Code, available online at: www.cityofpasadena.net/shorttermrentals

Violations can be reported to the Code Compliance at (626) 744-8633.